

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**DEFENDANT'S STATEMENT OF
DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby objects, by demurrer
2 pursuant to California Code of Civil Procedure § 430.10(e), to Plaintiff FRANCISCUS DYLAN
3 ROSARIO’s First Amended Complaint (“FAC”) on the following grounds:

- 4 1. This Court does not have jurisdiction over the matters alleged in the FAC.
- 5 2. Plaintiff has other actions pending—including a pending appeal—which are
6 intertwined with the matters alleged in the FAC.
- 7 3. The FAC fails to state facts sufficient to constitute a viable cause of action.
- 8 4. The entire FAC is uncertain and legally unsupportable.
- 9 5. The FAC improperly targets Defendant’s protected litigation conduct under Civil
10 Code § 47(b).
- 11 6. The FAC presents an improper collateral attack on a prior valid judgment.
- 12 7. The relevant statute of limitations bars Plaintiff’s claims in the FAC.
- 13 8. Plaintiff does not have standing.

14 WHEREFORE, Defendant prays that its Demurrer be sustained without leave to amend, that
15 Plaintiff take nothing by way of his FAC, and for all other proper relief.

16
17 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

By _____
Chad S. Tapp
Tyler J. O’Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **DEFENDANT’S STATEMENT OF**
7 **DEMURRER TO PLAINTIFF’S FIRST AMENDED COMPLAINT (“FAC”).**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney’s office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party’s residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

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13
14
15
16 Addressed as follows:

17 **PLAINTIFF, IN PRO PER**

18 Franciscus Dylan Rosario
19 7624 Melody Drive
20 Rohnert Park, CA 94928
21 soltrinox@gmail.com

22
23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 13, 2026.

25 **Monique Schubert**
26 Monique Schubert
27
28